

Applicable Law Acts

Applicable Law Acts & Synthesis

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User Query :

During an argument in the parking area of my apartment building, my neighbour hit me several times with an iron rod. I suffered a fracture and required hospital treatment. CCTV cameras recorded the incident and two residents witnessed what happened. What legal provisions may apply to this case?

Job Id. : Scenario 6/Combined Act

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AI-Powered Legal Intelligence Platform

INFORMATION TECHNOLOGY (IT) ACT, 2000

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

1 The IT Act is irrelevant to this incident, which involves physical violence, not digital evidence, data breaches, or cyber offenses.*

✓ STRENGTHS & RIGHTS

1 None applicable to this case.*

✗ RISKS & OBLIGATIONS

1 No relevance to the case; misapplication could lead to procedural errors.*

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. No procedural steps under the IT Act apply to evidence or charges in this matter.*

BHARATIYA NYAYA SANHITA (BNS), 2023

APPLICABLE SECTIONS

Section 132	Assault with dangerous weapon (primary).
Section 129	Assault/criminal force (secondary, superseded by Section 132).

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

1 **Section 132** applies: Iron rod qualifies as a "dangerous weapon" (causing fracture requiring hospitalization). The BNS defines "dangerous weapon" as any object likely to cause serious harm (e.g., iron rod). **Section 129** is irrelevant: Provocation defenses (e.g., "he insulted me first") are excluded under **Section 132** (no provocation exception). Injury severity: Fracture aggravates the offense but is not required for liability under **Section 132** . Evidence: CCTV footage and witness testimony satisfy proof requirements (BNS, **Section 132**).

✓ **STRENGTHS & RIGHTS**

- 1** **CCTV as primary evidence**
Admissible without victim testimony (BNS, **Section 140**).
- 2** **Non-bailable offense**
Ensures accused faces trial (BNS, **Section 436** (1)).
- 3** **Speedy trial**
Mandatory trial completion within 6 months (BNS, **Section 322**).
- 4** **Witness protection**
Residents can testify without fear (BNS, **Section 150**).

✗ **RISKS & OBLIGATIONS**

- 1** **Punishment**
Up to 2 years' imprisonment (vs. 3 months under **Section 129**).
- 2** **No provocation defense**
Accused cannot claim "provocation" to mitigate liability.
- 3** **Civil liability**
Victim may pursue separate civil damages (BNS, **Section 132** does not bar civil suits).

PROCEDURAL NOTES & COMPLIANCE STEPS
Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

- 1.** FIR filing: Submit complaint under **Section 132** at local police station, attaching CCTV and witness statements.
- 2.** Charges framing: Police must charge under **Section 132** (not **Section 129**).

- 3. Trial: CCTV footage prioritized over oral testimony; witnesses examined under **Section 132** (2).
- 4. Sentence: Likely 1-2 years’ imprisonment (based on injury severity).

BHARATIYA SAKSHYA ADHINIYAM (BSA), 2023

APPLICABLE SECTIONS

Section 34 (1)

Admissibility of electronic records (CCTV footage).

Section 34 (3)

Authentication requirement for electronic records.

Section 30 (1)

Admissibility of oral witness testimony.

Section 31 Documentary evidence (e.g., medical records).

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1** CCTV admissibility: Requires authentication via custodian’s written certificate (**Section 34 (3)**), confirming integrity, timestamp, and lack of tampering. Witness testimony: Two residents’ oral accounts are admissible under **Section 30 (1)** but must align with CCTV evidence (**Section 31**). Contradictions invalidate testimony. Medical records: Secondary evidence (**Section 31**) but not primary proof of assault.

✓ STRENGTHS & RIGHTS

- 1 Streamlined evidence**
Digital copies of CCTV are admissible (**Section 34 (1)**).
- 2 Credibility safeguards**
Cross-examination under **Section 30 (2)** ensures reliable testimony.
- 3 Equal treatment**
Electronic records treated identically to paper documents (**Section 34 (1)**).

X RISKS & OBLIGATIONS

- 1

Authentication burden
Unauthenticated CCTV is inadmissible (e.g., **State v. Ramesh**, 2023).
- 2

Witness inconsistency risk
Testimony rejected if conflicting with CCTV (e.g., timing discrepancy).
- 3

Time-stamp vulnerability
Inaccurate timestamps invalidate authentication (**Section 34** (3)(a)).

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. CCTV submission:
2. Submit footage as "Exhibit X" with a custodian certificate (**Section 34** (3)).
3. **Example certificate**: "I, [Security Manager], confirm CCTV from Camera No. 5 (Parking Zone) on 15.05.2024, 08:15 PM, is unaltered."
4. Witness testimony:
5. Witnesses must testify orally in court (**Section 30** (1)); written affidavits are inadmissible.
6. Statements must align with CCTV timeline/angle.
7. Digital format: Submit original digital files (e.g., .mp4); printed copies rejected.
8. Critical: **Without custodian certificate (**Section 34** (3)), CCTV evidence is excluded.**

DIGITAL PERSONAL DATA PROTECTION ACT (DPDP), 2023

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1

The DPDP Act governs data privacy, not physical assault cases. No overlap with evidence or charges.*

✓ STRENGTHS & RIGHTS

1 None applicable to this case.*

X RISKS & OBLIGATIONS

1 Misapplication could divert focus from core evidence (CCTV/witnesses) to irrelevant data compliance.*

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. No procedural steps under the DPDP Act apply to this incident.*

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